

C.A. No. 26-10936

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION AND CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

On Petition for Review of an Order of the
United States Securities and Exchange Commission
SEC Release No. 34-105003

**INTERVENOR EXCHANGES' OPPOSITION TO
PETITIONERS' MOTION TO STAY**

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**CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENTS**

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, the undersigned counsel of record for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc., The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; Nasdaq Texas, LLC, New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc. (the “Intervenor Exchanges”) certifies that the persons and entities below are currently known to have an interest in the outcome of this case:

1. 24X National Exchanger LLC, Member and participant of CAT LLC;
2. American Securities Association, Petitioner;
3. ArentFox Schiff LLP, Counsel for the Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.;
4. Ballard Spahr LLP, Counsel for The Nasdaq Stock Market, LLC, Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX, LLC, and Nasdaq Texas, LLC;
5. Berman, Ari M., Counsel for New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.;

6. Borse Dubai Limited, Owner of 10% or Greater Interest in Nasdaq, Inc.;
7. BOX Exchange LLC, Member and participant of CAT LLC;
8. Boyle, Gregory M., Counsel for CAT LLC;
9. Intervenor Cboe BYX Exchange, Inc., Member and participant of CAT LLC;
10. Intervenor Cboe BZX Exchange, Inc., Member and participant of CAT LLC;
11. Intervenor Cboe C2 Exchange, Inc., Member and participant of CAT LLC;
12. Intervenor Cboe EDGA Exchange, Inc., Member and participant of CAT LLC;
13. Intervenor Cboe EDGX Exchange, Inc., Member and participant of CAT LLC;
14. Intervenor Cboe Exchange, Inc., Member and participant of CAT LLC;
15. Cboe Global Markets, Inc. (BATS: CBOE), Indirect Owner of 10% or Greater Interest in CAT LLC, and Direct or Indirect Parent Company of Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.;
16. Citadel Securities GP LLC, Parent company of Petitioner;

17. Citadel Securities LLC, Petitioner;
18. Connolly, J. Michael, Counsel of record for Petitioner American Securities Association;
19. Intervenor Consolidated Audit Trail, LLC (“CAT LLC”), a jointly owned limited liability company formed under Delaware state law through which the participants conduct the activities of the CAT NMS Plan;
20. Consovoy McCarthy PLLC, Counsel for Petitioner American Securities Association;
21. Deutsch, Elizabeth B., Counsel for CAT LLC;
22. Dinkel, Christopher S., Counsel for Petitioner Citadel Securities LLC;
23. Financial Industry Regulatory Authority, Inc., Member and participant of CAT LLC;
24. Francisco, Noel J., Counsel of record for Petitioner Citadel Securities LLC;
25. Gershengorn, Ian Heath, Counsel of Record for CAT LLC;
26. Greenwalt, Paul, III, ArentFox Schiff, Counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc;
27. Hardin, Tracey A., Counsel for Respondent United States Securities and Exchange Commission;

28. Heckendorn, J. Maxwell, ArentFox Schiff, Counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc;

29. Intercontinental Exchange, Inc. (NYSE: ICE), Indirect Owner of 10% or Greater Interest in Intervenor Consolidated Audit Trail, LLC, and Indirect Parent Company of New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.;

30. International Securities Exchange Holdings, Inc., Parent Company of Nasdaq GEMX, LLC, Nasdaq ISE, LLC, and Nasdaq MRX, LLC;

31. Investor AB (Nasdaq Stockholm: INVE B), Owner of 10% or Greater Interest in Nasdaq, Inc.;

32. Investors Exchange LLC, Member and participant of CAT LLC;

33. Jenner & Block LLP, Counsel for CAT LLC;

34. Jones Day, Counsel for Petitioner Citadel Securities LLC;

35. Kastenber, Stephen J., Counsel for Intervenor The Nasdaq Stock Market, LLC, Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX, LLC, and Nasdaq Texas, LLC;

36. Lantieri III, Paul, Counsel of Record for The Nasdaq Stock Market, LLC, Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX, LLC, and Nasdaq Texas, LLC;

37. Long-Term Stock Exchange, Inc., Member and participant of CAT LLC;
38. Lucas, Brinton, Counsel for Petitioner Citadel Securities LLC;
39. Maclean, Matthew J., Counsel for New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.;
40. Madigan, Sarah M., Counsel for New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.;
41. Marshall, Jonathan J., Counsel for CAT LLC;
42. Matro, Daniel, counsel for Respondent U.S. Securities and Exchange Commission;
43. McGranahan, J. Russell, Counsel for Respondent United States Securities and Exchange Commission;
44. MEMX LLC, Member and participant of CAT LLC;
45. Miami International Holdings, Inc. (NYSE: MIAX), Indirect Owner of 10% or Greater Interest in CAT LLC, and Indirect Parent Company of Miami International Securities Exchange LLC, MIAX Emerald, LLC, MIAX PEARL, LLC, and MIAX Sapphire, LLC;

46. Miami International Securities Exchange LLC, Member and participant of CAT LLC;

47. MIAX Emerald, LLC, Member and participant of CAT LLC;

48. MIAX PEARL, LLC, Member and participant of CAT LLC;

49. MIAX Sapphire, LLC, Member and participant of CAT LLC;

50. Molzberger, Michael, ArentFox Schiff, counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc;

51. Montgomery, Sophia W., Counsel for CAT LLC;

52. Intervenor Nasdaq GEMX, LLC, Member and participant of CAT LLC;

53. Nasdaq, Inc. (Nasdaq: NDAQ) Parent Company of Nasdaq PHLX LLC, Nasdaq Texas, LLC, and The Nasdaq Stock Market LLC;

54. Intervenor Nasdaq ISE, LLC, Member and participant of CAT LLC;

55. Intervenor Nasdaq MRX, LLC, Member and participant of CAT LLC;

56. Intervenor Nasdaq PHLX LLC, Member and participant of CAT LLC;

57. Intervenor Nasdaq Texas, LLC, Member and participant of CAT LLC;

58. Intervenor New York Stock Exchange LLC, Member and participant of CAT LLC;

59. Intervenor NYSE American LLC, Member and participant of CAT LLC;
60. Intervenor NYSE Arca, Inc., Member and participant of CAT LLC;
61. Intervenor NYSE National, Inc., Member and participant of CAT LLC;
62. Intervenor NYSE Texas, Inc., Member and participant of CAT LLC;
63. Oliwenstein, David, Counsel for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.;
64. Phillips, David, Counsel for Petitioner Citadel Securities LLC;
65. Pillsbury Winthrop Shaw Pittman LLP, Counsel for New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.;
66. Rabbitt, Brian C., Counsel for Petitioner Citadel Securities LLC;
67. Templin, Hannah, Counsel for Petitioner Citadel Securities LLC;
68. Intervenor The Nasdaq Stock Market LLC, Member and participant of CAT LLC;
69. The Vanguard Group, Inc., Owner of 10% or Greater Interest in Cboe Global Markets, Inc., and Owner of 10% or Greater Interest in Nasdaq, Inc.;
70. United States Securities and Exchange Commission, Respondent;
71. Warnke, Anne S., Counsel for CAT LLC;

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-2, the undersigned counsel of record for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc. certifies that each entity is a direct or indirect wholly-owned subsidiary of Cboe Global Markets, Inc. (ticker symbol “CBOE”), a public company. Cboe Global Markets, Inc. has no parent corporation. The Vanguard Group, Inc., a privately held corporation, holds more than 10% of Cboe Global Markets, Inc.’s shares.¹

Pursuant to Federal Rule of Appellate Procedure 26.1 and 11th Circuit Rule 26.1-2, the undersigned counsel for New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc. certifies that each entity is an indirect wholly-owned subsidiary of Intercontinental Exchange, Inc., which is publicly traded under the stock symbol “ICE.” ICE has no parent corporation and, as of the date hereof, no publicly held company owns 10% or more of its stock.

¹ This information is current as of December 31, 2025. On March 26, 2026, The Vanguard Group, Inc. filed a Schedule 13G/A noting that, following an internal realignment that occurred on January 12, 2026, certain subsidiaries or business divisions of subsidiaries of The Vanguard Group, Inc. will report beneficial ownership separately and The Vanguard Group, Inc. will no longer have beneficial ownership of Cboe shares. Cboe will file an updated corporate disclosure, if and when new information becomes available.

Pursuant to Federal Rule of Appellate Procedure 26.1 and 11th Circuit Rule 26.1-2, the undersigned counsel for The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; Nasdaq Texas, LLC hereby certifies that each entity is a direct or indirect subsidiary of Nasdaq, Inc., which is publicly traded under the ticker symbol “NDAQ.” Nasdaq, Inc. has no parent corporation. Borse Dubai Limited, The Vanguard Group, Inc., and Investor AB (Nasdaq Stockholm: INVEB) each own 10% or more of Nasdaq, Inc.’s common stock.

Dated: April 27, 2026

/s/ Paul E. Greenwalt III
Paul E. Greenwalt III

Counsel for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc. Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.

Dated: April 27, 2026

/s/ Matthew J. MacLean
Matthew J. MacLean

Counsel for Intervenor-Movants New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.

Dated: April 27, 2026

/s/ Paul Lantieri III

Paul Lantieri III

*Counsel for The Nasdaq Stock Market
LLC, Nasdaq GEMX, LLC, Nasdaq
ISE, LLC, Nasdaq MRX, LLC, Nasdaq
PHLX LLC; and Nasdaq Texas, LLC*

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ARGUMENT

The Intervenor Exchanges submit this statement to advise the Court that they oppose Petitioners' Opposed Motion for Stay (the "Motion," ECF No. 20-1).² The Intervening Exchanges are aware that the Securities and Exchange Commission and Consolidated Audit Trail, LLC are submitting briefs opposing the Motion. Therefore, to avoid burdening the Court with cumulative briefing, the Intervening Exchanges are not submitting separate briefs opposing the Motion.

Dated: April 27, 2026

Respectfully submitted,

/s/ Paul E. Greenwalt III

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² The "Intervenor Exchanges" are Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe Exchange, Inc., The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; Nasdaq Texas, LLC, New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.

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*Counsel for Intervenors Cboe BYX
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Cboe C2 Exchange, Inc. Cboe EDGA
Exchange, Inc., Cboe EDGX Exchange, Inc.,
and Cboe Exchange, Inc*

Dated: April 27, 2026

Respectfully submitted,

New York Stock Exchange LLC
NYSE American LLC
NYSE Arca, Inc.
NYSE National, Inc.
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/s/ Matthew J. MacLean

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*NYSE Arca, Inc., NYSE National, Inc., and
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Dated: April 27, 2026

Respectfully submitted,

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Nasdaq MRX, LLC, Nasdaq PHLX LLC; and
Nasdaq Texas, LLC*

CERTIFICATE OF COMPLIANCE

I hereby certify that this document complies with the word limit set forth in Federal Rules of Appellate Procedure 27(d)(2)(A) because, excluding the parts of the document exempted by Federal Rule of Appellate Procedure 27(a)(2)(B) and 32(f), this document contains 130 words.

I further certify that this document complies with the typeface and type-style requirements set forth in Federal Rules of Appellate Procedure 27(d)(1)(E), 32(a)(5), and 32(a)(6) because it has been prepared using 14-point Times New Roman font in Microsoft Office Word 365.

Dated: April 27, 2026

/s/ Paul E. Greenwalt III
Paul E. Greenwalt III

*Counsel for Intervenors Cboe BYX
Exchange, Inc., Cboe BZX Exchange,
Inc., Cboe C2 Exchange, Inc. Cboe
EDGA Exchange, Inc., Cboe EDGX
Exchange, Inc., and Cboe Exchange,
Inc.*

CERTIFICATE OF SERVICE

I hereby certify that on this day, I electronically filed the foregoing document with the Clerk of the Court for the United States Court of Appeals for the Eleventh Circuit by using the appellate CM/ECF system, which will send notice to all the parties.

Dated: April 27, 2026

/s/ Paul E. Greenwalt III
Paul E. Greenwalt III

*Counsel for Intervenors Cboe BYX
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Inc., Cboe C2 Exchange, Inc. Cboe
EDGA Exchange, Inc., Cboe EDGX
Exchange, Inc., and Cboe Exchange,
Inc.*